

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201703013	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/18/2017 7:30 PM	Location of Incident: East 125th Street and First Avenue	18 Mo. SOL 10/18/2018	Precinct: 25
Date/Time CV Reported Wed, 04/19/2017 12:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/19/2017 12:29 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mirjan Lolja	05658	936967	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Pescatore	16738	961100	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mirjan Lolja	Abuse: Police Officer Mirjan Lolja questioned § 87(2)(b)	A . Exonerated
B . POM Mirjan Lolja	Off. Language: Police Officer Mirjan Lolja made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . POM Mirjan Lolja	Discourtesy: Police Officer Mirjan Lolja spoke discourteously to § 87(2)(b)	C . Substantiated
D . POM Mirjan Lolja	Abuse: Police Officer Mirjan Lolja threatened to notify Administration for Children's Services.	D . Substantiated

Case Summary

On April 19, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone (**01 Board Review**).

On April 18, 2017, at approximately 7:30 PM, § 87(2)(b) was attempting to board an M60 Select Bus in the vicinity of 125th Street and St. Nicholas Avenue. § 87(2)(b) got into a dispute with the bus driver, and alleged that he pushed her as she was carrying her § 87(2)(b) daughter. When the bus arrived at 125th Street and First Avenue, Police Officer Mirjan Lolja and Police Officer Michael Pescatore, of the 25th Precinct, boarded the bus. PO Lolja asked § 87(2)(b) if she had consumed any drugs or alcohol (**Allegation A**). PO Lolja instructed all of the passengers except for § 87(2)(b) to exit the bus, and board a different bus. § 87(2)(b)'s mother, § 87(2)(b), subsequently arrived. As PO Lolja and PO Pescatore were returning to their police vehicle, PO Lolja allegedly told § 87(2)(b) that she was “black” and did not “mean anything” (**Allegation B**). PO Lolja told § 87(2)(b) to go the “fuck” home, and told her that she was “lucky” he did not call ACS on her (**Allegation C, Allegation D**).

There were no arrests made or summonses issued in regards to this case.

This case has no video evidence.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- On June 29, 2017, a FOIL request to the NYC Comptroller’s Office returned negative results (**11 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (**06 Board Review**).
- PO Lolja has been a member of service for twelve years, and has ten allegations against him, with no substantiations. PO Lolja has two previous allegations of discourtesy (word).

Findings and Recommendations

Allegation A –Abuse of Authority: Police Officer Mirjan Lolja questioned § 87(2)(b)

§ 87(2)(b) (**02 Board Review**) stated that she was visibly upset with the bus driver, was yelling at him, jiggling her leg as she sat, and was crying. When PO Lolja and PO Pescatore boarded the bus, § 87(2)(b) was on the phone with her mother and yelling at the bus driver, and she told PO Lolja that she wanted to file a complaint against the bus driver. PO Lolja told § 87(2)(b) that he was concerned about her behavior, and asked if she was on drugs.

PO Lolja (**04 Board Review**) stated that prior to boarding the bus he spoke to the bus driver. The bus driver informed him that § 87(2)(b) had rendered it impossible to continue operating the bus because she was yelling at him, and threatening other passengers. When PO Lolja boarded the bus, § 87(2)(b) was sweating profusely, had glassy eyes, was breathing heavily, and speaking on the telephone. PO Lolja instructed § 87(2)(b) to end her telephone call so that he could find out what happened, and § 87(2)(b) refused. PO Lolja asked § 87(2)(b) if she had taken “anything” that day, such as “alcohol, or a prescribed medication” because of her physical presentation, and because she did not calm down after she hung up the phone. PO Lolja cleared the bus of all its passengers except for § 87(2)(b).

PO Pescatore (**05 Board Review**) did not hear PO Lolja ask § 87(2)(b) if she was on drugs, or if she had used alcohol or taken a prescribed medication.

People v. DeBour 40 N.Y.2d 210, 215 an officer may question a civilian when he has founded suspicion to believe that criminality is afoot (**09 Board Review**).

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegation A** be Exonerated.

Allegation B- Offensive Language: Police Officer Mirjan Lolja made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) (**02 Board Review**) stated that as she walked away from PO Lolja and PO Pescatore after getting off the bus, PO Lolja told her that she was “black and did not “mean anything.”

On May 17, 2017, § 87(2)(b) provided a telephone statement (**03 Board Review**). § 87(2)(b) stated that she told PO Lolja that § 87(2)(b) was a black mother who was hard working and had a job. § 87(2)(b) did not recall PO Lolja responding to that statement.

PO Lolja (**04 Board Review**) stated that § 87(2)(b) told him that § 87(2)(b) was a “hard working black woman,” and told him that she wanted him to arrest the bus driver. PO Lolja responded that it did not matter if § 87(2)(b) was black or white, he was not going to arrest the bus driver. PO Lolja did not tell § 87(2)(b) that she was “black and did not mean anything.”

PO Pescatore (**05 Board Review**) did not recall hearing PO Lolja tell § 87(2)(b) that she was “black and did not mean anything.” PO Pescatore did not recall otherwise hearing a conversation about race.

§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegation B** be Unsubstantiated.

Allegation C- Discourtesy: Police Officer Mirjan Lolja spoke discourteously to § 87(2)(b)

Allegation D- Abuse of Authority: Police Officer Mirjan Lolja threatened to notify Administration for Children's Services.

§ 87(2)(g)

§ 87(2)(b). It is undisputed that as § 87(2)(b) and § 87(2)(b) were walking away from PO Lolja and PO Pescatore, and PO Lolja and PO Pescatore were walking towards their police vehicle, that PO Lolja told § 87(2)(b) to go the “fuck” home, and that she was “lucky” he did not call ACS on her. § 87(2)(b) was with her mother, § 87(2)(b) and was calm.

§ 87(2)(b) (03 Board Review) stated that as she and § 87(2)(b) were walking away, PO Lolja told them to either go the “fuck” home, or shut the “fuck” up. PO Lolja repeatedly used the word “fuck” while speaking to them. PO Lolja told § 87(2)(b) that he could call ACS on her, and § 87(2)(b) told him that her grandchildren were going home with her.

PO Lolja (04 Board Review) stated that he told § 87(2)(b) to go the “fuck” home because he alleged that as § 87(2)(b) walked away she said “fuck the police,” and had been uncooperative and irate for the entirety of their interaction. PO Lolja told § 87(2)(b) that she was lucky he did not call ACS because she had been swearing in front of her child, was irate and unable to calm down for much of their interaction, and her child looked “terrified.” PO Lolja did not interact with the children, and did not ask § 87(2)(b) about the state of her children.

PO Pescatore (05 Board Review) did not recall hearing PO Lolja tell § 87(2)(b) that she was lucky he did not call ACS on her, and did not recall hearing PO Lolja tell § 87(2)(b) to go the “fuck” home. PO Pescatore described § 87(2)(b)'s child as appearing to be calm.

Patrol Guide Procedure 203-09 states that officers must be courteous and respectful (07 Board Review).

Patrol Guide Procedure 215-03 states that the purpose of emergency removals or investigation and reporting of abused, neglected, or maltreated children is to protect children from abuse, neglect or maltreatment by instituting emergency removal proceedings if a child is in immediate danger, or conduct an investigation of a potential abuse situation where a child is in no imminent danger, and report the findings to the appropriate authorities (08 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be **Substantiated**.

§ 87(2)(g)

Therefore, it is recommended that
Allegation D be Substantiated.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date